Commission de Surveillance du Secteur Financier

Circular CSSF 25/894

Information to be submitted to the CSSF in relation to investment funds non-authorised by the CSSF

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To all Luxembourg investment fund managers ("IFMs") as defined in paragraph 1 of this circular.

Luxembourg 27 June 2025

Ladies and Gentlemen,

This circular establishes the guidelines to be followed by Luxembourg investment fund managers when they start to manage a fund non-authorised by the CSSF.

More specifically, these guidelines cover the transmission of information to the CSSF when a Luxembourg IFM starts to manage an investment fund non-authorised by the CSSF.

This circular repeals Circular CSSF 15/612 in accordance with the provisions set out in section 6 below.

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1. Definitions and abbreviations

ESMA:	European Securities and Markets Authority
AIF:	An alternative investment fund in accordance with Article 1(39) of the 2013 Law.
Authorised AIFM:	An alternative investment fund manager authorised under Article 5 of the 2013 Law[1].
Registered AIFM:	An alternative investment fund manager registered under Article 3 of the 2013 Law[2].
AIFM:	An authorised or registered AIFM.
2013 Law:	The Law of 12 July 2013 on alternative investment fund managers.
UCI Law:	The Law of 17 December 2010 relating to undertakings for collective investment.
UCITS:	An undertaking for collective investment in transferable securities subject to Part I of the UCI Law.
ManCo15:	A management company subject to Chapter 15 of the UCI Law.

The following are **investment funds non-authorised by the CSSF**:

1.1. "European UCITS"

European UCITS means an undertaking for collective investment in transferable securities subject to Directive 2009/65/EC and which is not established in Luxembourg.

1.2. "Additional European UCITS"

Additional European UCITS means any European UCITS which has not been notified previously to the CSSF.

[1] Article 5(1) of the 2013 Law: "(1) No person referred to in Article 2(1) may exercise in Luxembourg the activity of AIFM responsible for the management of AIFs unless it is authorised in accordance with this Chapter." Article 2(1) specifies that the Law applies "to every legal person governed by Luxembourg law, the regular business of which is to manage one or more AIFs irrespective of whether these AIFs are AIFs established in Luxembourg, AIFs established in another Member State of the European Union or AIFs established in third countries, the AIF belongs to the open-ended or closed-ended type and whatever the legal form of the AIF or the legal structure of the AIFM.".

[2] Article 3(3) of the 2013 Law: "The AIFMs referred to in paragraph 2 must (...) be registered with the CSSF". These AIFMs are "(a) AIFMs established in Luxembourg which either directly or indirectly, through a company with which the AIFM is linked by common management or control, or by a substantive direct or indirect holding, manage portfolios of AIFs whose assets under management, including any assets acquired through use of leverage, in total do not exceed a total threshold of EUR 100,000,000; or (b) AIFMs established in Luxembourg which either directly or indirectly, through a company with which the AIFM is linked by common management or control, or by a substantive direct or indirect holding, manage portfolios of AIFs whose assets under management in total do not exceed a threshold of EUR 500,000,000 when the portfolios of AIFs consist of AIFs that are unleveraged and have no redemption rights exercisable during a period of five years following the date of initial investment in each AIF.".

In addition, where a European UCITS comprises several compartments, the obligations in respect of information are applicable at the level of each new compartment of the European UCITS.

1.3. "European AIF"

European AIF means an AIF established in another EU or EEA Member State. Such AIF may be authorised or not in its home country.

1.4. "Non-authorised AIF established in Luxembourg"

Non-authorised AIF established in Luxembourg means an AIF which has not been granted prior authorisation by and/or is not subject to the prudential supervision of the CSSF.

1.5. "AIF established in a third country"

AIF established in a third country means any AIF established in a third country. Such AIF may be authorised or not in its home country.

1.6. "Additional AIF"

Additional AIF means any AIF referred to in point 1.3., 1.4. or 1.5. of this circular and that has not been notified to the CSSF, either during the review of the AIFM's authorisation or registration file, or for the purpose of updating that file.

In addition, where an AIF comprises several compartments, the obligations in respect of information are applicable at the level of each new compartment of the AIF.

2. Scope and purpose of the circular

This circular applies to the following Luxembourg investment fund managers (hereinafter "IFMs"):

- ManCo15;
- registered AIFMs;
- authorised AIFMs.

The circular covers the transmission of information to the CSSF by any IFM that starts managing an investment fund non-authorised by the CSSF.

3. Context

The CSSF in its capacity as competent authority for the supervision of IFMs must be able to know all the funds managed by the IFMs established in Luxembourg in a comprehensive manner and at all times. However, the obligations to transmit information as defined in the UCI Law (Article 147), the 2013 Law (Article 22(2) to (5) for authorised AIFMs) and in Commission Delegated Regulation (EU) No 231/2013 of 19 December 2012 (Article 5(5) for registered AIFMs) do not always enable the CSSF to have a global and up-to-date view of the UCITS and AIFs managed by these IFMs. This is notably the case where the ManCo15 established in Luxembourg start managing UCITS established in another Member State.

Moreover, the CSSF must communicate to ESMA, at least on a quarterly basis, the list of all AIFs managed by AIFMs established in Luxembourg, as well as additional information relating to the management and marketing of these AIFs in order to keep the European register of AIFMs up to date.

4. Information to be transmitted to the CSSF

In order to allow the CSSF to have up-to-date information, IFMs must complete the form for every investment fund non-authorised by the CSSF that they undertake to manage. The CSSF would like to remind that each IFM is responsible for ensuring that the organisation of funds non-authorised by the CSSF as well as the delegation structure and, where applicable, the sub-delegation structure of these funds, comply with the regulations applicable to IFMs and to funds non-authorised by the CSSF.

The forms to be used to this effect are available for download at:

https://www.cssf.lu/en/Document/circular-cssf-25-894/

The forms and the additional documents, as required in this form, must be transmitted via the relevant eDesk procedure.

In the event of a substantial change to information or to the documents transmitted in accordance with this circular, the CSSF must be informed thereof without delay via the relevant eDesk procedure.

Moreover, as soon as they cease to manage an investment fund non-authorised by the CSSF referred to in this circular, IFMs must also inform the CSSF thereof. This information must also be sent via eDesk using the relevant form and procedure.

5. Information transmission deadlines

The information must be addressed to the CSSF:

- at the latest 10 working days after the IFM concerned has started managing an additional European UCITS and/or AIF.

It should be noted that the CSSF considers that an IFM takes on the role of manager at the latest:

- at the date of the signature, or at the effective date of the management agreement appointing the IFM as the manager of the investment fund concerned, it being understood that this fund may not yet have been launched;
- at the date of establishment or formation of the investment fund, where the IFM also acts as managing general partner/shareholder or manager of the fund within the meaning of the Law of 10 August 1915 on commercial companies or where the fund initiator is the same or belongs to the same group as the initiator of the IFM;
- at any other date on which it is effectively demonstrated, from a legal and factual point of view, that the general responsibility for management within the meaning of the 2013 Law has been conferred on the AIFM.

In the event of the termination of the management mandate for a non-authorised investment fund referred to in this circular, the IFM must inform the CSSF of this termination within a period of 10 working days.

6. Entry into force and repealing provisions

This circular enters into force with immediate effect.

Circular CSSF 15/612 is repealed upon the entry into force of this circular.

Please send any question regarding this circular by email to aifm@cssf.lu.

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